

HOUSE BILL No. 1240

DIGEST OF INTRODUCED BILL

Citations Affected: IC 5-2-6.1-1.2; IC 6-1.1-1-4.7; IC 10-14-1-3.5; IC 12-7-2-51.3; IC 16-18-2-88.4; IC 23-14; IC 25-1; IC 25-15; IC 29-2; IC 30-2-13; IC 35-31.5-2-72.7; IC 36-1-2.

Synopsis: Dissolution of human remains. Amends the definition of cremation to include alkaline hydrolysis as a means for the dissolution of human remains. Requires the state board of funeral and cemetery service to adopt rules governing the operation of alkaline hydrolysis facilities. Adds alkaline hydrolysis to statutes that allow for burial or cremation.

Effective: July 1, 2026.

Genda, Clere, Hamilton

January 5, 2026, read first time and referred to Committee on Commerce, Small Business and Economic Development.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1240

A BILL FOR AN ACT to amend the Indiana Code concerning business and other associations.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 5-2-6.1-1.2 IS ADDED TO THE INDIANA CODE
- 2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
- 3 1, 2026]: **Sec. 1.2. As used in this chapter, "cremation" has the**
- 4 **meaning set forth in IC 23-14-31-8.**
- 5 SECTION 2. IC 6-1.1-1-4.7 IS ADDED TO THE INDIANA CODE
- 6 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
- 7 1, 2026]: **Sec. 4.7. "Crematory" has the meaning set forth in**
- 8 **IC 23-14-31-11.**
- 9 SECTION 3. IC 10-14-1-3.5 IS ADDED TO THE INDIANA CODE
- 10 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
- 11 1, 2026]: **Sec. 3.5. "Cremation" has the meaning set forth in**
- 12 **IC 23-14-31-8.**
- 13 SECTION 4. IC 12-7-2-51.3 IS ADDED TO THE INDIANA CODE
- 14 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
- 15 1, 2026]: **Sec. 51.3. "Cremation" or "cremate", for purposes of**
- 16 **IC 12-20, has the meaning set forth in IC 23-14-31-8.**
- 17 SECTION 5. IC 16-18-2-88.4 IS ADDED TO THE INDIANA



CODE AS A NEW SECTION TO READ AS FOLLOWS
[EFFECTIVE JULY 1, 2026]: **Sec. 88.4. "Cremation" or "cremate"**
has the meaning set forth in IC 23-14-31-8.

SECTION 6. IC 23-14-31-0.3 IS ADDED TO THE INDIANA
CODE AS A NEW SECTION TO READ AS FOLLOWS
[EFFECTIVE JULY 1, 2026]: **Sec. 0.3. As used in this chapter,**
"alkaline hydrolysis" means the dissolution of human remains by:

**(1) placing the human remains in water and a chemical
solution that includes:**

(A) potassium hydroxide;

(B) sodium hydroxide; or

**(C) a combination of potassium hydroxide and sodium
hydroxide; and**

(2) introducing heat;

**to break down the human remains to only bone fragments that may
be pulverized and a liquid substance.**

SECTION 7. IC 23-14-31-0.4 IS ADDED TO THE INDIANA
CODE AS A NEW SECTION TO READ AS FOLLOWS
[EFFECTIVE JULY 1, 2026]: **Sec. 0.4. As used in this chapter,**
"alkaline hydrolysis chamber" means an enclosed space that:

(1) is specifically created for alkaline hydrolysis; and

(2) is able to be completely sealed during alkaline hydrolysis.

SECTION 8. IC 23-14-31-0.5 IS ADDED TO THE INDIANA
CODE AS A NEW SECTION TO READ AS FOLLOWS
[EFFECTIVE JULY 1, 2026]: **Sec. 0.5. As used in this chapter,**
**"alkaline hydrolysis facility" means a structure in which human
remains undergo, or are intended to undergo, alkaline hydrolysis.**

SECTION 9. IC 23-14-31-7 IS AMENDED TO READ AS
FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 7. (a)** As used in this
chapter, "cremated remains" means all human remains recovered after
the completion of the cremation of a human body or body part,
including the residue of any foreign materials, nonmetallic casket
material, dental work, or eyeglasses that were cremated with the human
remains but excluding any prosthetic or medical device.

(b) The term includes hydrolyzed remains.

SECTION 10. IC 23-14-31-8 IS AMENDED TO READ AS
FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 8.** As used in this
chapter, "cremation" or "**cremate**" means **the following:**

(1) The:

(A) incineration of:

(i) the body of a deceased ~~person~~ individual; or

(ii) a body part of a nondeceased ~~person~~ individual; and



(B) ~~the~~ mechanical or manual reduction of identifiable bone fragments to unidentifiable bone fragments.

(2) Alkaline hydrolysis.

SECTION 11. IC 23-14-31-9 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) As used in this chapter, "cremation chamber" means the enclosed space where the cremation takes place.

(b) The term includes an alkaline hydrolysis chamber.

SECTION 12. IC 23-14-31-10 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) As used in this chapter, "cremation room" means the room where the cremation chamber is located.

(b) The term includes an alkaline hydrolysis room.

SECTION 13. IC 23-14-31-11 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) As used in this chapter, "crematory" means a building or structure, including a holding facility where human remains are or are intended to be cremated.

(b) The term includes an alkaline hydrolysis facility.

SECTION 14. IC 23-14-31-16.1 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16.1. As used in this chapter, "hydrolyzed remains" means all human remains recovered after the completion of alkaline hydrolysis, including the residue of any foreign materials, dental work, or eyeglasses that were with the human remains when alkaline hydrolysis was conducted. The term does not include the following:

(1) A prosthetic.

(2) A medical device.

(3) Any liquid substance remaining after alkaline hydrolysis.

SECTION 15. IC 23-14-31-21.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 21.5. For purposes of the law governing cremation, a reference to cremation includes the process of alkaline hydrolysis.

SECTION 16. IC 23-14-31-35.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 35.5. (a) A crematory authority may not do the following:

(1) Require that human remains be placed in a casket before, or for the performance of, alkaline hydrolysis.

(2) Refuse to accept unembalmed human remains for alkaline hydrolysis on the basis of the lack of embalming.



(3) Accept a casket or an alternative container on which there is evidence of the leakage of body fluids.

(b) If human remains are not delivered in a casket to a crematory for alkaline hydrolysis, the human remains must be in an alternative container or single use human remains pouch that:

- (1) is made of a consumable material;
- (2) may be closed adequately to provide a complete covering for the human remains;
- (3) is resistant to leakage or spillage;
- (4) may be handled with ease; and
- (5) provides protection for the health, safety, and personal integrity of crematory personnel.

SECTION 17. IC 23-14-31-45.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 45.5. A crematory authority shall:**

- (1) obtain federal, state, and local permits governing the disposal of any liquid substance remaining after the performance of alkaline hydrolysis; and
- (2) dispose of any liquid substance remaining after the performance of alkaline hydrolysis in compliance with any federal, state, and local requirements governing the disposal of the liquid substance.

SECTION 18. IC 23-14-31-54 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 54. The board may adopt rules under IC 4-22-2 to implement this chapter.**

SECTION 19. IC 23-14-33-4.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4.5. For purposes of the law governing funeral services and cremation, a reference to cremation includes the process of alkaline hydrolysis.**

SECTION 20. IC 23-14-33-14 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 14. "Cremation" means:**

- (+) the incineration of:
 - (A) the body of a deceased individual; or
 - (B) a body part of a nondeceased individual; and
- (2) the mechanical or manual reduction of identifiable bone fragments to unidentifiable bone fragments: or "cremate" has the meaning set forth in IC 23-14-31-8.

SECTION 21. IC 23-14-33-15 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 15. "Crematory" means**



1 a building or structure, including a holding facility, within which the
 2 remains of deceased individuals:

3 (1) are; or

4 (2) are intended to be;

5 ~~cremated~~; has the meaning set forth in IC 23-14-31-11.

6 SECTION 22. IC 23-14-42.5-2.5 IS ADDED TO THE INDIANA
 7 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 8 [EFFECTIVE JULY 1, 2026]: **Sec. 2.5. As used in this chapter,**
 9 **"cremate" has the meaning set forth in IC 23-14-31-8.**

10 SECTION 23. IC 23-14-54-0.5 IS ADDED TO THE INDIANA
 11 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 12 [EFFECTIVE JULY 1, 2026]: **Sec. 0.5. As used in this chapter,**
 13 **"cremate" has the meaning set forth in IC 23-14-31-8.**

14 SECTION 24. IC 23-14-54.5-1.5 IS ADDED TO THE INDIANA
 15 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 16 [EFFECTIVE JULY 1, 2026]: **Sec. 1.5. As used in this chapter,**
 17 **"cremated remains" has the meaning set forth in IC 23-14-31-7.**

18 SECTION 25. IC 23-14-55-0.3 IS ADDED TO THE INDIANA
 19 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 20 [EFFECTIVE JULY 1, 2026]: **Sec. 0.3. As used in this chapter,**
 21 **"cremated remains" has the meaning set forth in IC 23-14-31-7.**

22 SECTION 26. IC 23-14-55-0.5 IS ADDED TO THE INDIANA
 23 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 24 [EFFECTIVE JULY 1, 2026]: **Sec. 0.5. As used in this chapter,**
 25 **"cremation" has the meaning set forth in IC 23-14-31-8.**

26 SECTION 27. IC 23-14-57-0.5 IS ADDED TO THE INDIANA
 27 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 28 [EFFECTIVE JULY 1, 2026]: **Sec. 0.5. As used in this chapter,**
 29 **"cremate" has the meaning set forth in IC 23-14-31-8.**

30 SECTION 28. IC 23-14-59-0.5 IS ADDED TO THE INDIANA
 31 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 32 [EFFECTIVE JULY 1, 2026]: **Sec. 0.5. As used in this chapter,**
 33 **"cremated remains" has the meaning set forth in IC 23-14-31-7.**

34 SECTION 29. IC 25-1-5-4.5, AS ADDED BY P.L.16-2022,
 35 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 36 JULY 1, 2026]: **Sec. 4.5. (a) The agency's duties and functions under**
 37 **this chapter include developing and maintaining a system that allows**
 38 **an individual who is applying for:**

39 (1) an initial license or certificate; or

40 (2) the renewal of an existing license or certificate;

41 to become a donor of an anatomical gift (as defined by
 42 IC 29-2-16.1-1(3)).



(b) The agency shall place the information of an individual who elects to become a donor of an anatomical gift in a donor registry (as defined by ~~IC 29-2-16.1-1(9)~~). **IC 29-2-16.1-1(10)**.

(c) An individual authorized to make an anatomical gift under IC 29-2-16.1 may amend or revoke an anatomical gift under IC 29-2-16.1-5. However, the agency's system under subsection (a) is not required to amend or remove a donor's decision to make an anatomical gift from the registry if the individual at a later time amends or revokes their decision to be a donor.

(d) The system developed under this section must comply with the requirements under IC 29-2-16.1.

SECTION 30. IC 25-1-6-4.5, AS ADDED BY P.L.16-2022, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.5. (a) The licensing agency's duties and functions under this chapter include developing and maintaining a system that allows an individual who is applying for:

(1) an initial license or certificate; or

(2) the renewal of an existing license or certificate;

to become a donor of an anatomical gift (as defined by IC 29-2-16.1-1(3)).

(b) The licensing agency shall place the information of an individual who elects to become a donor of an anatomical gift in a donor registry (as defined by ~~IC 29-2-16.1-1(9)~~). **IC 29-2-16.1-1(10)**.

(c) An individual authorized to make an anatomical gift under IC 29-2-16.1 may amend or revoke an anatomical gift under IC 29-2-16.1-5. However, the licensing agency's system under subsection (a) is not required to amend or remove a donor's decision to make an anatomical gift from the registry if the individual at a later time amends or revokes their decision to be a donor.

(d) The system developed under this section must comply with the requirements under IC 29-2-16.1.

SECTION 31. IC 25-15-2-6 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. "Cremate" ~~means to incinerate human remains and to mechanically or manually reduce the bone fragments of the remains to unidentifiable bone fragments.~~ or **"cremation" has the meaning set forth in IC 23-14-31-8.**

SECTION 32. IC 25-15-2-6.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 6.5. "Cremated remains" has the meaning set forth in IC 23-14-31-7.**

SECTION 33. IC 25-15-2-6.6 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS



[EFFECTIVE JULY 1, 2026]: **Sec. 6.6. "Crematory" has the meaning set forth in IC 23-14-31-11.**

SECTION 34. IC 25-15-11 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 11. Alkaline Hydrolysis

Sec. 1. The definitions in IC 23-14-31 apply throughout this chapter.

Sec. 2. The board shall adopt rules under IC 4-22-2 concerning alkaline hydrolysis, including the following:

- (1) Regulation of alkaline hydrolysis facilities containing equipment designed for alkaline hydrolysis of human remains.**
- (2) Regulation of alkaline hydrolysis chambers.**
- (3) Regulation of the pulverizing of bone fragments to an unidentifiable dimension after alkaline hydrolysis.**
- (4) Setting standards for disposition of hydrolyzed remains that result from pulverization, where the hydrolyzed remains are reduced to unidentifiable dimensions.**
- (5) Setting standards for:**
 - (A) the dignified transportation of human remains for alkaline hydrolysis;**
 - (B) any equipment or container used in alkaline hydrolysis; and**
 - (C) the disposal of hydrolyzed remains.**
- (6) Exclusive use of any chamber, container, or other equipment used in alkaline hydrolysis of human remains.**
- (7) Supervision of alkaline hydrolysis by a funeral director who is licensed under this article.**

SECTION 35. IC 29-2-16.1-1, AS AMENDED BY P.L.50-2021, SECTION 68, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 1. The following definitions apply throughout this chapter:**

- (1) "Adult" means an individual at least eighteen (18) years of age.**
- (2) "Agent" means an individual who is:**
 - (A) authorized to make health care decisions on behalf of another person by a health care power of attorney under IC 30-5-5-16 or a health care representative under IC 16-36-7; or**
 - (B) expressly authorized to make an anatomical gift on behalf of another person by a document signed by the person.**
- (3) "Anatomical gift" means a donation of all or part of a human**



body to take effect after the donor's death for the purpose of transplantation, therapy, research, or education.

(4) "Bank" or "storage facility" means a facility licensed, accredited, or approved under the laws of any state for storage of human bodies or parts of human bodies.

(5) "Cremation" has the meaning set forth in IC 23-14-31-8.

~~(5)~~ (6) "Decedent":

(A) means a deceased individual whose body or body part is or may be the source of an anatomical gift; and

(B) includes:

(i) a stillborn infant; and

(ii) except as restricted by any other law, a fetus.

~~(6)~~ (7) "Disinterested witness" means an individual other than a spouse, child, sibling, grandchild, grandparent, or guardian of the individual who makes, amends, revokes, or refuses to make an anatomical gift or another adult who exhibited special care and concern for the individual. This term does not include a person to whom an anatomical gift could pass under section 10 of this chapter.

~~(7)~~ (8) "Document of gift" means a donor card or other record used to make an anatomical gift, including a statement or symbol on:

(A) a driver's license;

(B) an identification card;

(C) a resident license to hunt, fish, or trap; or

(D) a donor registry.

~~(8)~~ (9) "Donor" means an individual whose body or body part is the subject of an anatomical gift.

~~(9)~~ (10) "Donor registry" means:

(A) a data base maintained by:

(i) the bureau of motor vehicles; or

(ii) the equivalent agency in another state;

(B) the Donate Life Indiana Registry maintained by the Indiana Donation Alliance Foundation; or

(C) a donor registry maintained in another state;

that contains records of anatomical gifts and amendments to or revocations of anatomical gifts.

~~(10)~~ (11) "Driver's license" means a license or permit issued by the bureau of motor vehicles to operate a vehicle.

~~(11)~~ (12) "Eye bank" means a person that is licensed, accredited, or regulated under federal or state law to engage in the recovery, screening, testing, processing, storage, or distribution of human



eyes or portions of human eyes.

~~(12)~~ **(13)** "Guardian" means an individual appointed by a court to make decisions regarding the support, care, education, health, or welfare of an individual. The term does not include a guardian ad litem.

~~(13)~~ **(14)** "Hospital" means a facility licensed as a hospital under the laws of any state or a facility operated as a hospital by the United States, a state, or a subdivision of a state.

~~(14)~~ **(15)** "Identification card" means an identification card issued by the bureau of motor vehicles.

~~(15)~~ **(16)** "Minor" means an individual under eighteen (18) years of age.

~~(16)~~ **(17)** "Organ procurement organization" means a person designated by the Secretary of the United States Department of Health and Human Services as an organ procurement organization.

~~(17)~~ **(18)** "Parent" means an individual whose parental rights have not been terminated.

~~(18)~~ **(19)** "Part" means an organ, an eye, or tissue of a human being. The term does not mean a whole body.

~~(19)~~ **(20)** "Pathologist" means a physician:

(A) certified by the American Board of Pathology; or

(B) holding an unlimited license to practice medicine in Indiana and acting under the direction of a physician certified by the American Board of Pathology.

~~(20)~~ **(21)** "Person" means an individual, corporation, business trust, estate, trust, partnership, limited liability company, association, joint venture, public corporation, government or governmental subdivision, agency, instrumentality, or any other legal or commercial entity.

~~(21)~~ **(22)** "Physician" or "surgeon" means an individual authorized to practice medicine or osteopathy under the laws of any state.

~~(22)~~ **(23)** "Procurement organization" means an eye bank, organ procurement organization, or tissue bank.

~~(23)~~ **(24)** "Prospective donor" means an individual who is dead or near death and has been determined by a procurement organization to have a part that could be medically suitable for transplantation, therapy, research, or education. The term does not include an individual who has made an appropriate refusal.

~~(24)~~ **(25)** "Reasonably available" means:

(A) able to be contacted by a procurement organization without undue effort; and



(B) willing and able to act in a timely manner consistent with existing medical criteria necessary for the making of an anatomical gift.

~~(25)~~ (26) "Recipient" means an individual into whose body a decedent's part has been or is intended to be transplanted.

~~(26)~~ (27) "Record" means information that is inscribed on a tangible medium or that is stored in an electronic or other medium and is retrievable in perceivable form.

~~(27)~~ (28) "Refusal" means a record created under section 6 of this chapter that expressly states the intent to bar another person from making an anatomical gift of an individual's body or part.

~~(28)~~ (29) "Sign" means, with the present intent to authenticate or adopt a record:

(A) to execute or adopt a tangible symbol; or

(B) to attach to or logically associate with the record an electronic symbol, sound, or process.

~~(29)~~ (30) "State" means a state of the United States, the District of Columbia, Puerto Rico, the United States Virgin Islands, or any territory or insular possession subject to the jurisdiction of the United States.

~~(30)~~ (31) "Technician" means an individual determined to be qualified to remove or process parts by an appropriate organization that is licensed, accredited, or regulated under federal or state law. The term includes an eye enucleator.

~~(31)~~ (32) "Tissue" means a part of the human body other than an organ or an eye. The term does not include blood or other bodily fluids unless the blood or bodily fluids are donated for the purpose of research or education.

~~(32)~~ (33) "Tissue bank" means a person that is licensed, accredited, or regulated under federal or state law to engage in the recovery, screening, testing, processing, storage, or distribution of tissue.

~~(33)~~ (34) "Transplant hospital" means a hospital that furnishes organ transplants and other medical and surgical specialty services required for the care of organ transplant patients.

SECTION 36. IC 29-2-19-0.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 0.5. As used in this chapter, "cremation" or "cremate" has the meaning set forth in IC 23-14-31-8.**

SECTION 37. IC 29-2-19-0.7 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS



1 [EFFECTIVE JULY 1, 2026]: **Sec. 0.7. As used in this chapter,**
 2 **"cremated remains" has the meaning set forth in IC 23-14-31-7.**

3 SECTION 38. IC 30-2-13-4.5 IS ADDED TO THE INDIANA
 4 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 5 [EFFECTIVE JULY 1, 2026]: **Sec. 4.5. As used in this chapter,**
 6 **"cremation" or "cremate" has the meaning set forth in**
 7 **IC 23-14-31-8.**

8 SECTION 39. IC 30-2-13-4.7 IS ADDED TO THE INDIANA
 9 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 10 [EFFECTIVE JULY 1, 2026]: **Sec. 4.7. As used in this chapter,**
 11 **"crematory" has the meaning set forth in IC 23-14-31-11.**

12 SECTION 40. IC 35-31.5-2-72.7 IS ADDED TO THE INDIANA
 13 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 14 [EFFECTIVE JULY 1, 2026]: **Sec. 72.7. "Cremation", for purposes**
 15 **of IC 35-50-5-3, has the meaning set forth in IC 23-14-31-8.**

16 SECTION 41. IC 36-1-2-4.1 IS ADDED TO THE INDIANA CODE
 17 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 18 1, 2026]: **Sec. 4.1. As used in this chapter, "cremated remains" has**
 19 **the meaning set forth in IC 23-14-31-7.**

20 SECTION 42. IC 36-1-2-4.2 IS ADDED TO THE INDIANA CODE
 21 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 22 1, 2026]: **Sec. 4.2. "Cremation" or "cremate" has the meaning set**
 23 **forth in IC 23-14-31-8.**

24 SECTION 43. IC 36-1-2-4.4 IS ADDED TO THE INDIANA CODE
 25 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 26 1, 2026]: **Sec. 4.4. "Crematory" has the meaning set forth in**
 27 **IC 23-14-31-11.**

28 SECTION 44. [EFFECTIVE UPON PASSAGE] (a) **The state**
 29 **board of funeral and cemetery service shall adopt the rules**
 30 **described in IC 25-15-11-2, as added by this act, not later than July**
 31 **1, 2026.**

32 (b) **This SECTION expires July 1, 2027.**

33 SECTION 45. **An emergency is declared for this act.**

